

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
OLIVER ANTOINE,

Plaintiff,

Index No.:

-against-

SUMMONS

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE. LOUIS A.
PEPE, SHIELD NO: 5377, and DETECTIVE DANIEL
YOUNG, SHIELD NO: 5170

**Plaintiff designates Kings
County as Place of Trial.**

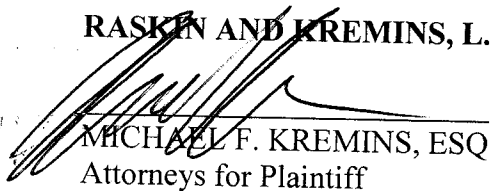
**The basis of venue is the County
where the incident occurred**

Defendants.
-----X

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York
August 17, 2017

RASKIN AND KREMINS, L.L.P.


MICHAEL F. KREMINS, ESQ.

Attorneys for Plaintiff

OLIVER ANTOINE

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

Our File No.: N-4617

DEFENDANTS' ADDRESSES:

NEW YORK CITY CORPORATION COUNSEL-100 Church Street, New York, New York
10007

NEW YORK CITY POLICE DEPARTMENT- 100 Church Street, New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT – 63RD PRECINCT – 1844 Brooklyn Ave,
Brooklyn, New York 11210

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
OLIVER ANTOINE,

Plaintiff,

Index No.:

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE LOUIS A.
PEPE, SHIELD NO: 5377, and DETECTIVE DANIEL
YOUNG, SHIELD NO: 5170

Defendants.
-----X

PLAINTIFF, OLIVER ANTOINE, by his attorneys, RASKIN AND KREMINS, L.L.P.,
complaining of defendants, upon information and belief, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, plaintiff, OLIVER ANTOINE, was and is a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned, defendant, DETECTIVE LOUIS A. PEPE, was employed by defendant, THE CITY OF NEW YORK.

5. That at all times hereinafter mentioned, defendant, DETECTIVE DANIEL YOUNG, was employed by defendant, THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, defendant, DETECTIVE LOUIS A. PEPE, was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.

7. That at all times hereinafter mentioned, defendant, DETECTIVE DANIEL YOUNG, was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.

8. That at all times hereinafter mentioned, defendant DETECTIVE LOUIS A. PEPE, was a member of THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of his employment.

9. That at all times hereinafter mentioned, defendant, DETECTIVE DANIEL YOUNG, was a member of THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of his employment.

10. That on or about May 21, 2015, at approximately 2:00P.M., defendants, DETECTIVE LOUIS A. PEPE and DETECTIVE DANIEL YOUNG, came to be present at/near the vicinity of East 49th Street and Avenue K, in the County of Kings, City and State of New York, during the normal course of his employment with defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

11. That on or about May 21, 2015, at approximately 2:00P.M., plaintiff was lawfully at/near the vicinity of East 49th Street and Avenue K, in the County of Kings, City and State of New York.

12. That on or about May 21, 2015, at approximately 2:00P.M., as a result of the wrongful, willful, reckless, careless and negligent acts of defendants herein, their agents, servants and/or employees, plaintiff sustained severe and permanent personal injuries.

13. That the foregoing occurred solely and wholly as a result of the negligence of defendants herein, their agents servants and/or employees, and without any negligence on the part of the plaintiff contributing thereto.

14. That the defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees; in negligently and carelessly failing to direct their agents, servants and/or employees not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing plaintiff to be subjected to assault and battery, traumatized, pushed, shoved, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force; in negligently and carelessly failing to adequately train police officers and/or other personnel for the public's safety, including plaintiff herein; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

15. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 15 of the complaint herein with the same force and effect as if set forth herein at length.

17. That the defendants, DETECTIVE LOUIS A. PEPE and DETECTIVE DANIEL YOUNG, acting under the color of authority and without provocation, viciously and maliciously attacked the plaintiff causing him to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

18. That the defendants, DETECTIVE LOUIS A. PEPE and DETECTIVE DANIEL YOUNG, acting under the color of authority and without provocation, viciously and maliciously assaulted the plaintiff causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

19. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 19 of the complaint herein with the same force and effect as if set forth herein at length.

21. That the defendants, DETECTIVE LOUIS A. PEPE and DETECTIVE DANIEL YOUNG, acting under the color of authority and without provocation, viciously and maliciously battered the plaintiff causing him to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

22. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

23. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 22 of the complaint herein with the same force and effect as if set forth herein at length.

24. That the defendants, DETECTIVE LOUIS A. PEPE and DETECTIVE DANIEL YOUNG, acting under the color of authority and without provocation, viciously and maliciously falsely arrested the plaintiff, wrongfully depriving plaintiff of his liberty.

25. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 25 of the complaint herein with the same force and effect as if set forth herein at length.

27. That the defendants, DETECTIVE LOUIS A. PEPE and DETECTIVE DANIEL YOUNG, acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned the plaintiff, for approximately nine (9) days, wrongfully depriving plaintiff of his liberty.

28. That the plaintiff was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

29. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that

will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 29 of the complaint herein with the same force and effect as if set forth herein at length.

31. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted the plaintiff, wrongfully depriving plaintiff of his liberty and due process of law.

32. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely compelled the plaintiff to appear in public and in court, wrongfully humiliating the plaintiff herein and depriving him of his liberty and due process of law.

33. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that

same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 33 of the complaint herein with the same force and effect as if set forth herein at length.

35. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

36. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.

37. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that

same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 37 of the complaint herein with the same force and effect as if set forth herein at length.

39. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

40. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 11 of the Constitution of the State of New York.

41. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that

same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 41 of the complaint herein with the same force and effect as if set forth herein at length.

43. That by reason of the foregoing acts and/or omissions of defendants in violation of the Fourteenth Amendment to the United States Constitution, plaintiff has been forced to bring this lawsuit to enforce 42 U.S.C. § 1983 and as a result thereof has suffered significant economic loss in the form of attorney's fees.

44. That pursuant to 42 U.S.C. § 1983, plaintiff is entitled to reasonable attorney's fees as part of costs.

AS AND FOR A TENTH CAUSE OF ACTION

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 44 of the complaint herein with the same force and effect as if set forth herein at length.

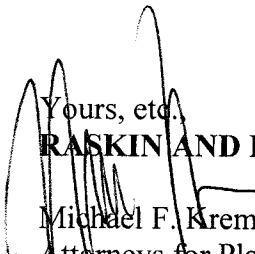
46. That at all times hereinafter mentioned, defendants, without cause or justification, did intentionally inflict emotional distress upon plaintiff, causing plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

47. That at all times hereinafter mentioned, defendants, without cause or justification, did negligently inflict emotional distress upon plaintiff, causing plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

48. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, plaintiff, OLIVER ANTOINE, demands judgement against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and DETECTIVE LOUIS A. PEPE and DETECTIVE DANIEL YOUNG, in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated : New York, New York
August 17, 2017


Yours, etc.

RASKIN AND KREMINs, L.L.P.

Michael F. Kremins, ESQ.

Attorneys for Plaintiff

OLIVER ANTOINE

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

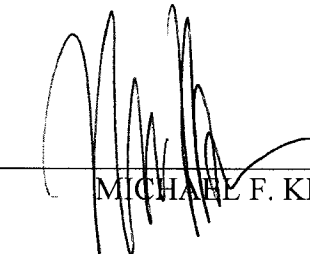
MICHAEL F. KREMINS, affirms under the penalties of perjury the following:

That I am a member of RASKIN & KREMINS, L.L.P., attorneys for plaintiff herein.

That I have read and know the contents of the foregoing COMPLAINT, that the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters I believe it be true.

That the reason why this verification is made by your affirmant instead of by the plaintiff is because the plaintiff is not within the County of New York, which is the County where your affirmant has his office. Your affirmant further says that the grounds of the belief as to all matters in the said VERIFIED COMPLAINT are statements of said plaintiff's papers and records in his possession, and a general investigation of the facts of this case.

Dated: New York, New York
August 17, 2017



MICHAEL F. KREMINS, ESQ.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

OLIVER ANTOINE,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE. LOUIS A.
PEPE, SHIELD NO: 5377, and DETECTIVE DANIEL
YOUNG, SHIELD NO: 5170

Defendants.

SUMMONS AND VERIFIED COMPLAINT

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff(s)
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk
of the within named Court on , 2017.

NOTICE OF
SETTLEMENT

☐ that an Order of which the within is a true copy will be presented to the Hon. ,
one of the judges of the within named Court, at , on .